

DATA PROCESSING AGREEMENT (DPA) — TEMPLATE PER GDPR ART. 28(3)

This Data Processing Agreement (this “Agreement”) is entered into as of the Effective Date by and between the Customer (the “Controller”) and the Processor (the “Processor”) and forms an integral part of the Principal Agreement between the parties. Capitalised terms not defined in this Agreement have the meanings given in Regulation (EU) 2016/679 (the “General Data Protection Regulation” or “GDPR”).

1. Designation of the Parties. The parties acknowledge that, for the purposes of this Agreement, the Customer is the Controller and the Processor is the Processor of Personal Data, each as defined in the GDPR. The Processor shall process Personal Data only on the documented instructions of the Controller, including with regard to transfers of Personal Data to a third country or an international organisation, unless required to do so by Union or Member State law to which the Processor is subject. In such a case, the Processor shall inform the Controller of that legal requirement before processing, unless that law prohibits such information on important grounds of public interest.

2. Sub-processing. The Processor shall not engage another processor for carrying out specific processing activities on behalf of the Controller without prior specific written authorisation of the Controller. Where the Controller gives general written authorisation, the Processor shall inform the Controller of any intended changes concerning the addition or replacement of other processors, thereby giving the Controller the opportunity to object to such changes. Where the Processor engages another processor for carrying out specific processing activities on behalf of the Controller, the same data protection obligations as set out in this Agreement shall be imposed on that other processor by way of a contract.

3. International Transfers. The Processor shall not transfer Personal Data to a third country or an international organisation unless the Controller has given prior specific written authorisation and an adequate level of protection is ensured by way of (a) an adequacy decision of the European Commission under Article 45 GDPR, (b) the Standard Contractual Clauses (Module Two) set out in Commission Implementing Decision (EU) 2021/914 of 4 June 2021, or (c) any other lawful transfer mechanism recognised under Chapter V GDPR. The Processor shall promptly notify the Controller if any such transfer mechanism is invalidated or amended.

4. Personal Data Breach Notification. The Processor shall notify the Controller of a Personal Data Breach without undue delay and in any event within twenty-four (24) hours of becoming aware of the Personal Data Breach. The notification shall describe the nature of the Personal Data Breach, the categories and approximate number of data subjects and records concerned, the likely consequences of the Personal Data Breach, and the measures taken or proposed to be taken to address it. The Processor shall provide the Controller with all information reasonably necessary to enable the Controller to notify the competent supervisory authority of the Personal Data Breach within seventy-two (72) hours of becoming aware, as required by Article 33(1) of the GDPR.

5. Audit Rights. The Processor shall make available to the Controller all information necessary to demonstrate compliance with the obligations laid down in this Agreement and shall allow for and contribute to audits, including inspections, conducted by the Controller or another auditor mandated by the Controller. Audits may be conducted on an annual basis with reasonable prior notice, and the Processor shall bear its own costs of making personnel, systems, and records available for such audits.

6. Return or Deletion of Personal Data. At the choice of the Controller, upon termination of the services relating to processing, the Processor shall return all Personal Data to the Controller and delete existing copies, unless Union

or Member State law requires storage of the Personal Data. The Processor shall provide written certification of such deletion upon the Controller's request.